

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 28, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. 9:00 AM	MSP15-00927 MATTER OF: THE BRENNON BLUNTACH SPECIAL NEEDS TRUST HEARING IN RE: SIXTH AND FINAL ACCOUNT AND REPORT OF TRUSTEE FILED ON 01/16/2026 BY HERB THOMAS
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Petition Approved
Proposed Order Submitted
No Appearance Required

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- 2.** **MSP20-00636** **ESTATE OF: MANJIT SINGH**
9:00 AM HEARING IN RE: PETITION FOR ORDERS APPROVING AND/OR ALLOWING FIRST & FINAL ACCOUNT, & REPORT OF ADMINISTRATOR; FINAL DISTRIBUTION; APPROVAL OF PAYMENT OF ADMINISTRATOR'S ATTY STATUTORY FEES, REIMBURSEMENT OF COSTS, DISCHARGE FILED ON 8-22-25 BY HARDEEP LALLY
- Need:
1. Evidence of Satisfaction of Creditor's Claims. PrC § 9353
 2. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir has previously been confined in any prison or other correctional facility. PrC §§ 216, 9202(b)
 3. Accounting that complies with PrC § 1060 *et seq.*
 4. Verified declaration of petitioner showing compliance with Probate Code § 11005
 5. Verified declaration by petitioner to clarify plan of distribution. ¶ 37 at page 8 requests distribution to minors Gurnaz Sidhu and Nicholas Singh, directly.
 6. Itemized receipt schedule if receipts are to be included in statutory fee calculation. CRC § 7.550(b)(6)
 7. Spouse did not file an election to subject any inheritance to formal administration so therefore court lacks jurisdiction to order distribution to spouse or fees thereon. Need petition (may be *ex parte*) showing good cause for allowing late election, and order. Otherwise you will need amended petition eliminating spouse's portion and a recalculation of statutory fees. Proposed election must comply with LR 7.305. See PrC §§ 13500, 13501, 13502
 8. Inventory and Appraisal filed
 9. Verified declaration by petitioner to show revised calculation of statutory fee base as required by CRC § 7.705, if needed. Specifically, calculation must begin values reported in Inventory and Appraisal.
 10. Proposed Order

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- 3.** **MSP21-00716** **ESTATE OF: CLYDE O WEATHERS**
9:00 AM HEARING IN RE: 1ST & FINAL ACCOUNT, REPORT OF ADMINISTRATOR, & PETN FOR FINAL DISTRIBUTION; ADMINISTRATOR'S STATUTORY COMMISSION, & FOR ALLOWANCE OF STATUTORY ATTORNEY'S FEES FILED ON 8-28-25 BY ADELE M MULLINS
- Need:
1. Appearances
 2. Proof of mailing Inventory and Appraisal to Inheritance Funding Company who requested special notice or waiver of notice. PrC § 8803
 3. Verified declaration by petitioner to clarify amount of disbursements. Summary at page 4 reflects \$29,709.67; however, Schedule B at page 10 states \$27,709.67.
 4. Verified declaration by petitioner to include an itemized list of expenses re: sale of real property. Reference to escrow closing statement in Decl. filed 1-20-2026 is insufficient.
 5. Verified declaration by petitioner to clarify total property on hand. Summary states \$414,470.68; however, Schedule F at page 11 reflects \$414,757.23.
 6. Verified declaration by petitioner to specify plan of distribution, including approximate amount of cash to be distributed to each beneficiary, including specific amounts to Marissa Espinosa and Malea Robinson. LR 7.301
 7. Proposed Order

Note: Objection by Vicky Galloway filed 12-19-2025.

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4. 9:00 AM	MSP21-01835 RE: THE MARQUIS AUSTIN SPECIAL NEEDS TRUST HEARING IN RE: SIXTH AND FINAL ACCOUNT AND REPORT OF TRUSTEE FILED ON 01/17/2026 BY HERB THOMAS Need: Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203
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5. **P22-01960** **ESTATE OF: WILLIAM SIMONSEN**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH IAEA
FILED ON 03/30/26 BY DOCTORS WITHOUT BORDERS

Need:

1. Appearances
2. Verified declaration by petitioner to add deceased spouse with date of death to petition Item # 8. LR 7.151(d)
3. Proof of mailing to Neil Simonsen at address in petition. Proof of Service filed 4-23-2026 reflects mailing to him at an address other than that listed in petition.
4. Proof of mailing to atty. Erin A. Norcia who requested special notice

Note: Order suspending Neil Simonsen as Executor filed 5-5-2026.

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6.	P23-00573	ESTATE OF: FRED CHIN
9:00 AM	HEARING IN RE: FIRST AND FINAL WAIVER OF ACCOUNT AND FINAL REPORT FILED ON 01/19/2026 BY LI HWA CHEN	
		<i>TR continued at next page</i>
	Need:	
	1. Appearances 2. Verified declaration by petitioner to state why status report was not filed within 12 months as required by PrC § 12200(b) 3. Verified declaration by petitioner to include dates of death of Mary Chin Bufton, Henry Chin, Helene Hall, Mabel Fong and Allen Chin. It appears these siblings post-deceased. 4. Verified declaration by petitioner to include personal representatives of Estates of Mary Chin Bufton, Henry Chin, Helene Hall, Mabel Fong and Allen Chin as persons entitled to receive notice. LR 7.112 5. Proof of mailing to anyone added by verified declaration, not already served 6. Verified declaration by petitioner to clarify date Creditor's Claim was filed by Franchise Tax Board. Claim was filed 3-25-2024, not 3-20-2024 as indicated at page 6, ¶ 21. 7. Accounting that complies with PrC § 1060 <i>et seq.</i> Need itemized dividends. "Various" reported throughout schedule of receipts. Need source of Axos receipts of \$545.62 and \$4,024.53 on 11-30-2025. Negative numbers are listed in schedule of gains/losses at page 21. Need separate statements of gains and losses. 8. Verified declaration of petitioner showing compliance with Probate Code § 11005 9. Authority for distribution to heirs of post-deceased siblings in this proceeding 10. Verified declaration by petitioner to clarify total Inventory and Appraisals at page 6, ¶ 23. Total is \$1,418,221.38, not \$1,418,321.25. Amount at ¶ 24 is correct. 11. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable. 12. Registered domestic partner did not file a <u>timely</u> election to subject any inheritance to formal administration so therefore court lacks jurisdiction to order distribution to registered domestic partner or fees thereon. Need petition (may be <i>ex parte</i>) showing good cause for allowing <u>late</u> election, and order. Otherwise you will need amended petition eliminating registered domestic partner's portion and a recalculation of statutory fees. Proposed election must comply with <u>LR 7.305</u>. See PrC §§ 13500, 13501, 13502	

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13. Verified declaration by petitioner to include additional facts upon which the petitioner bases the allegation of community property, including date and length of domestic partnership, whether partners were legally separated or living apart, when property was purchased and by whom, and whether community property funds were used to purchase property. ¶ 35 at page 9 requests that IRA be distributed solely to petitioner.
14. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
15. Declaration to state need for reserve in excess of \$2,000.00. If \$156,500.00 reserve is needed, Ct will consider approving a preliminary distribution and approve 75% of fees requested.
16. Proposed Order

Notes:

1. The personal representative and the attorney each have a duty to increase bond ex parte upon the realization that the bond is inadequate. CRC 7.204
2. Petition requests authority to pay her Creditor's Claim filed 2-28-2024, which court denied as a claim for equitable subrogation. See Allowance or Rejection of Creditor's Claim filed 3-7-2024.
3. Font size must not be smaller than 12 points. CRC 2.104

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7. 9:00 AM	P23-02036 ESTATE OF: MARTIN KERBAUGH HEARING IN RE: FIRST AND FINAL REPORT OF ADMINISTRATOR FILED 01/20/26 BY JOAN IVETTE HENRIGUEZ Need: Proposed Order
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- 8.** **P24-00947** **ESTATE OF: EVELYN SETTON**
9:00 AM HEARING IN RE: PETITION FOR FINAL DISTRIBUTION AND FIRST AND FINAL ACCOUNT AND REPORT
OF ADMINISTRATOR FILED BY EDGAR SETTON ON 10/14/2025
- Petitioner, brother, still must do the following:
1. Appear at the hearing
 2. File a verified declaration to include personal representative and heirs of post-deceased father Joseph Setton as persons entitled to receive notice
 3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
 4. File a verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir has previously been confined in any prison or other correctional facility. PrC §§ 216, 9202(b)
 5. File a Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal. PrC § 1061(a)(1)
 6. File a verified declaration of petitioner showing compliance with Probate Code § 11005
 7. File a verified declaration to include a list of assets on hand for distribution. LR 7.301
 8. File a verified declaration to clarify plan of distribution. Father Joseph Setton post-deceased. Mother Yvette Setton is only entitled to 50% interest in this estate, albeit mother has assigned her interest to Edgar Setton and David Setton.
 9. Submit a revised, proposed Order as needed

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- 9.** **P24-01477** **ESTATE OF: PATRICIA SOKOLSKI**
9:00 AM FIRST AND FINAL ACCT AND REPORT; PETITION FOR APPROVAL; COSTS; FEES; FINAL DISTRIBUTION
FILED ON 01/14/2026 BY GINO FRANCIS ZAPPIA
- Need:
1. Verified declaration by petitioner to clarify total amount of Inventory and Appraisals. Total is \$924,384.87, not \$917,749.71 as indicated at page 5, ¶ 21.
 2. Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal (\$924,384.87). Accounting begins \$917,749.71.
 3. Verified declaration by petitioner to clarify number of shares of Franklin Global Allocation Fund sold. I&A reflects 436.23700 shares; Schedule of Gains indicates 426.23700 shares were sold.
 4. Verified declaration by petitioner to clarify whether household tangible property was sold. It does not appear on hand for distribution and is not listed in change of assets schedule.
 5. Verified declaration of petitioner showing compliance with Probate Code § 11005
 6. Declaration showing calculation of interest to pecuniary devisee at 7% starting one year after date of death to be calculated at per day rate with estimated amount of interest owed. PrC § 12003
 7. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must begin with amount of Inventory and Appraisal.
 8. Revised, proposed Order as needed in resolution of above

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10.

9:00 AM

P24-02150

ESTATE OF: JESSIE CHANG

WAIVER OF ACCOUNT AND REPORT OF ADMINISTRATOR; PETITION FOR ALLOWANCE OF STATUTORY FEES TO ATTORNEY; FOR REIMBURSEMENT OF COSTS ADVANCED; AND FOR FINAL DISTRIBUTION FILED 8-28-25 BY LILLIAN CHANG

Need:

1. Waiver of Accounting filed or Accounting that complies with PrC § 1060 et seq.
2. Verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived
3. Revised, proposed Order if needed in resolution of above

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11.	P25-00278	MATTER OF: NICHOLAS AND ARLENE RIASANOVSKY LIVING TRUST DATED SEPTEMBER 23, 1999
9:00 AM	PETITION TO APPROVE THE FIRST ACCOUNT FILED BY ELIZABETH SOLOWAY AND BRIAN SAKARATA ON 2/14/25	
	Need appearances to report status	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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12.

9:00 AM

P25-00638

ESTATE OF: ALLISON MERKLE

PETITION TO DETERMINE OWNERSHIP OF PROPERTY FILED ON 01/20/26 BY RICHARD EDARD MERKLE

Need:

Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property, including Charles Schwab & Co. PrC § 851(a)(2)

Note: Letters Testamentary issued to Richard Edward Merkle 10-30-2025.

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13.

9:00 AM

P26-00025

ESTATE OF: CORA MCCRAY

PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED
WITH IAEA FILED ON 01/07/26 BY LATONDRA GOODE

Need:

1. Appearances
2. Lodge Original Will (w/legal process). PrC § 8200

If Original Will cannot be lodged, will also need:

1. Evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
2. Proof of mailing notice that will/codicil is lost. PrC § 1202
3. Proof of Subscribing Witness Form DE-131. PrC § 8220.
4. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

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| 14. | P26-00077 | MATTER OF: THE STEVEN J. OLIVA TRUST U.A.D. DATED DECEMBER 18, 2007 (AS AMENDED) |
| 9:00 AM | PETITION UNDER PROBATE CODE SECTION 17200 TO COMPEL DISTRIBUTION TO PETITIONER, TO REMOVE TRUSTEE, FOR APPOINTMENT OF SUCCESSOR TRUSTEE FILED ON 01/16/2026 BY GABRIELLA OLIVA | |
| | Need: <ul style="list-style-type: none">1. Appearances2. Verified declaration by petitioner to include Exhibit A, not attached as indicated3. Nomination of Professional Fiduciary and Consent to Act filed4. Proposed Order | |
| | Notes: <ul style="list-style-type: none">1. ¶2 at page 2 indicates an order was previously issued regarding this trust; however, no reference to case number is stated.2. Petition to Approve Accounting filed by Lara Bouzid 5-6-2026, is set for hearing 9-1-2026. | |

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15.

9:00 AM

P26-00526

ESTATE OF: LAWRENCE SANCHEZ

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA FILED ON 03/19/26
BY PAUL SANCHEZ AND PATRICIA M. SANCHEZ

Need:

1. Verified declaration by petitioner to clarify date of will. Will is dated 12-12-22, not 12-22-22 as indicated at Item # 3.f.(2)
2. Verified declaration by petitioners to clarify whether they are residents of the United States. Item # 3.h. is incomplete.
3. Verified declaration by petitioner to complete petition item # 5.a.(2)(a) or 5.a.(2)(b) (whether decedent was divorced or never married or whether spouse is deceased)
4. Verified declaration by petitioner to clarify statement in Decl. filed 3-26-26 that issue of grandparents is listed in Item # 8. None are listed.
5. Order for Probate Form DE-140